Arvinder Singh vs Inderjeet Singh & Ors on 30 November, 2011

Author: G.S.Sistani

Bench: G.S.Sistani

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ CS(OS) 780/2011

% Order pronounced on 30th November, 2011

ARVINDER SINGH ..... Plaintiff
Through : Mr. Sanjeev Sachdeva, Sr. Adv. with Mr.Atul Nigam and Mr. A. Nayak, Mr. Preet Pal Singh and Mr.Abhimanyu, Advs. for plaintiffs

versus

INDERJEET SINGH & ORS ..... Defendants
Through : Mr. Rajat Aneja, Adv for defendant no.1.

CORAM:
HON'BLE MR. JUSTICE G.S.SISTANI

ORDER

% 30.11.2011 I.A.NOS. 5039/2011 (XXXIX R 1 & 2) & 7674/2011 (XXXIX R 4)

1. Plaintiff has filed the present suit for declaration, cancellation of documents, partition, possession and permanent injunction. Together with the plaint the plaintiff has filed I.A.No.5039/2011 under Order XXXIX Rules 1 and 2 CPC for interim relief. On 29.3.2011, this Court has passed the following order:

> 1. Allowed, subject to the plaintiff filing all the original documents relating to this case in his power and possession within 10 days.

2. The application stands disposed of.

CS(OS)No.780/2011 and I.A.Nos.5039-40/2011

1. Issue summons in the suit and notice in applications to the defendants by ordinary process, registered AD post as well as dasti, returnable on 14th July, 2011.

2. The learned counsel for the plaintiff has made following submissions at the time of hearing of the stay application:-

> The plaintiff and defendant No.1 are the sons whereas defendants No.2 and 3 are the married daughters of late Sardar Harnam Singh and Sardarni Amarjeet Kaur. Late Sardar Harnam Singh expired on 12th December, 2002 leaving behind Will dated 10th October, 2001 in favour of his wife Sardarni Amarjeet Kaur. Sardarni Amarjeet Kaur died intestate on 2nd December, 2010. According to the plaintiff, the estate of late Sardarni Amarjeet Kaur devolved equally upon all the parties and, therefore, the plaintiff sought partition of the estate of his mother in December, 2010 when he came to know for the first time that defendant No.1 got the gift deed dated 2nd June, 2004 executed by his mother in his favour in respect of the first and second floor of property bearing No.30/56, Punjabi Bagh, New Delhi - 110026. The plaintiff also discovered that Late Sardarni Amarjeet Kaur had executed gift deed dated 26th August, 2004 in favour of defendant No.1 in respect of 1/4th share of property bearing No.32, Rani Jhansi Road, New Delhi. The plaintiff is challenging the gift deeds and the relinquishment deed and is seeking declaration that the late Sardarni Amarjeet Kaur died intestate and the plaintiff has 1/4th share in her estate. The plaintiff apprehends that the defendants may create third party interest in respect of the suit properties and is, therefore, seeking ex-parte ad- interim injunction.

3. In the facts and circumstances of this case, the defendants are directed to maintain status quo with respect to title and possession of the suit properties till the next date of hearing.

4. Order XXXIX Rule 3 of the Code of Civil Procedure be complied with within 10 days.

5. Dasti."

2. During the pendency of the matter, defendant no.2, sister, filed an application under Order I Rule 10 CPC for being transposed as plaintiff no.2. By an order dated 13.10.2011, defendant no.2 was transposed as plaintiff no.2.

3. The defendant no.1 has filed I.A. No.7674/2011 under Order XXXIX Rule 4 CPC. Both the applications have been heard together and are being disposed of by a common order.

4. The facts of the case, as stated by the plaintiffs in the plaint, are that plaintiff no.1 and defendant no.1 are the sons of late Sardar Harnam Singh and Sardarni Amarjeet Kaur. Defendant no.2 (since transposed as plaintiff no.2.) and defendant no.3 are their married daughters. Subject matter of the present suit are two properties - (i) 30/56, Punjabi Bagh, New Delhi, (hereinafter referred to as „Punjabi Bagh), and (ii) 1/4 th share inherited by the mother of late Sardarni Amarjeet Kaur in the property bearing no.32, Rani Jhansi Road, New Delhi (hereinafter referred to as „Rani Jhansi Road).

5. The case of the plaintiff is that Sardar Harnam Singh predeceased his wife Sardarni Amarjeet Kaur (hereinafter called „the mother) and by his Will dated 10.10.2002 he made a bequest of property situated at Punjabi Bagh along with movable properties comprising of cash, ornaments, saving bank accounts, FDRs in favour of his wife (the mother). The mother also inherited 1/4th share in the property at Rani Jhansi Road by means of a Will of her mother.

6. It is the case of the plaintiffs that defendant no.1 by fraudulent misrepresentation, undue influence and by adopting deceitful/dubious, illegal means, schemed to transfer the properties belonging to the mother in his favour. Property at Punjabi Bagh at the relevant time was a single storied house built on a land measuring 555.55 sq. yards. It is not in dispute that this property was acquired through a Sale Deed dated 9.3.1979.

7. As per the plaint, Registered Will dated 1.2.2002, by which properties were bequeathed in favour of Sardarni Amarjeet Kaur was revoked on 10.10.2002 by a document title as „Cancellation of Will and subsequently Sardar Harnam Singh executed two separate Registered Wills on 10.10.2002. Sardar Harnam Singh expired on 12.12.2002. As per the plaint, from the end of the year 2001 and beginning of the year 2002 the mother had been complaining of severe headache and had started developing psychiatric symptoms of talking incoherently, showing signs of listlessness, incontinence and delusions that she would be thrown out of the residential house at Punjabi Bagh by her family members and also that her sons would snatch away her properties. Sardarni Amarjeet Kaur was put on medication for her psychiatric behaviour and changes. According to the plaintiffs, soon after the death of her husband in the year 2002, the illness of the mother worsened and she started to get seizures, lapses of memory and at times was turning violent against her family members and servants attending upon her. Having regard to her illness, deteriorating condition and also mental and physical state the Doctors started administering high doses of sedatives and painkillers which made her very weak and she became incapable of performing her daily chores. Taking advantage of the illness of the mother defendant no.1 propounded that due to the death of the father of the parties, the mother had developed psychiatric symptoms not on account of any neurological problem but because of a sense of insecurity. Defendant no.1, thus, pressurized the parties that property at Punjabi Bagh be mutated in the name of the mother, which would give her a sense of satisfaction and security. Plaintiffs did not doubt the integrity of defendant no.1, who made the alleged proposal and defendant no.1 took upon himself the task of getting the property at Punjabi Bagh mutated in favour of the mother. For this purpose, defendant no.1 took signatures of the plaintiffs on blank papers and also made them execute certain affidavits, declarations and power of attorney in his favour. Plaintiffs executed the documents and signed on blank papers innocently and in good faith without reading and considering the nature and character of the printed documents. It has also been averred in the plaint that in the middle of the year 2004 the mother had to be hospitalized on a number of occasions for carrying out clinical tests and treatment. The Doctors attending on her were unable to diagnose her illness and continued to treat her as a psychiatric patient stating that she being highly emotionally attached to her husband and on his demise she had suffered a set back leading to depression, loss of memory, etc.

8. Learned counsel for the plaintiff submits that defendant no.1 took advantage of the serious turn in the physical and mental condition of the mother and misrepresented to the parties that officials of

the MCD were insisting for having probate of the Will to enable them to mutate the property in favour of the mother and since grant of probate would take a long time upon legal advice, defendant no.1 convinced the parties to get a registered document in favour of their mother to create a sense of false confidence and satisfaction. Having regard to the ill health of the mother and wishing her stability, long life and confidence, plaintiffs in good faith signed various documents at the behest of defendant no.1 without understanding the character or effect of those documents and implication on their legal rights. Defendant no.1 during this period i.e. 2004 made payments to the plaintiff no.1 towards his share of interest and goodwill in M/s Sahni Auto Spare Parts and in this manner gained confidence of the plaintiff no.1. Plaintiffs were made to sign and execute documents on 1.6.2004 when all parties appeared before Sub-Registrar. Despite her ill health the mother was prevailed upon by defendant no.1 to appear before Sub-Registrar on the premise that by taking her to the office of Sub- Registrar she would be convinced that the property is being transferred in her name. Counsel for the plaintiffs further submits that defendant no.1 took advantage of his relationship and trust reposed in him and got the documents drafted, signed and presented before the Sub-Registrar in such a manner that the plaintiffs did not get a chance to read the contents of the documents. Demand of copies of these documents by the plaintiffs was declined by defendant no.1.

9. Counsel for the plaintiffs next submits that shortly after execution of documents in favour of the mother, which later on they learnt to be Relinquishment Deed dated 1.6.2004, defendant no.1 again fraudulently proposed to the parties that since the property at Punjabi Bagh would be divided amongst all, it would be better, considering the frail health of the mother and also that substantial funds were lying with defendant no.1 that a building be constructed with independent floors on the plot to be divided amongst the parties. Believing the proposal made by defendant no.1 to be genuine, in the interest of the family and on the assurance that the property would be equally divided, the plaintiffs agreed to the same. Considering it in the interest of the mother and also that it would benefit the mother during her life time defendant no.1 took upon himself to get the building constructed at his own sole responsibility as the mother was not in a fit mental or physical state to participate in the same. Although, plaintiff no.1 was in occupation of the single stored house along with mother and defendant no.1, as per the understanding between the parties plaintiff no.1 moved out of the property so that building could be raised down for new construction. Admittedly, plaintiffs did not contribute for the construction of the building on the ground that defendant no.1 had been controlling the finances of the common business after the death of the father and he had taken over all the funds of the bank accounts. Defendant no.1, who was enjoying the absolute trust of the parties, and with continuous deterioration in the health of the mother, he had full control over all the finances of the mother. The construction at Punjabi Bagh was completed in December, 2005. Defendant no.1 along with the mother shifted to the house at Punjabi Bagh in January, 2006, and he informed the plaintiffs that he had let out the basement and ground floor of the property. The explanation rendered for the same was that funds were required for meeting the medical expenses of the mother and letting the property was necessary during her life time. The plaintiffs allowed defendant no.1 to let out the property and to decide the best option available considering that the health of the mother was deteriorating fast. The mother kept on staying with defendant no.1, however, plaintiffs regularly attended on her and the attendants, who were kept on looking after the mother, were being paid out of the funds available with defendant no.1. The medical condition of the mother deteriorated substantially and she started talking incoherently, irrelevantly and failed to

recognize persons. Since the medical condition of the mother was such that she was fully dependent on defendant no.1, plaintiffs out of concern and well being of the mother did not raise any issue with defendant no.1 and allowed him to manage and deal with the finances and the property, based on the assurance of defendant no.1 that property would be divided equally amongst all the family members. In the year 2006, condition of the mother aggravated, she was examined by neurologist, who suspected a tumor. The suspicion turned into reality and it was because of the tumor on the left fragile region, which was the cause of multifarious problems including the development of mental changes, psychiatric disorders, memory loss, dullness, progressive weakness, etc. In support of his argument, counsel for the plaintiff has placed strong reliance of the medical record of the deceased mother. As per the advice of the Doctor a surgery was performed on the mother in October, 2007. Despite surgery the mother showed no signs of improvement and finally fell into coma in August, 2008. She was confined to bed and remained in an unconscious state. Efforts made by plaintiffs to contribute to the medical expenses of the mother were declined by defendant no.1 on the ground that medical expenses were being met out of the rental income received from various floors of the property at Punjabi Bagh. The mother continued to remain in Coma till her death on 2.12.2010. All her funeral expenses were met by defendant no.1 as he represented to the parties that there were substantial funds in the bank accounts, which were being operated by him comprising of the rental income. It is somewhere in the second week of December, 2010, that plaintiffs requested defendant no.1 to partition the properties as per the settlement when defendant no.1 disclosed that the mother had executed a gift deed on 2.6.2004 in his favour. The mother had also entered into a Collaboration Agreement with the builder for construction of the building and in exchange thereof had transferred the basement and the ground floor of the property to the builder. Defendant no.1 also revealed that in January, 2007, he had sold the entire first floor of the property at Punjabi Bagh. The plaintiffs also made enquiries about the property at Rani Jhansi Road where the mother had 1/4th share in the lease hold property, which share was inherited by her being a legal heir of late Smt. Hardai Kaur and Sh. Harnam Singh, mother and father of Sardarni Amarjeet Kaur. Plaintiffs were then shocked to learn that defendant no.1 had also got a gift deed executed in his favour with respect to 1/4th share of Sardarni Amarjeet Kaur.

10. It is the case of the plaintiffs that two gift deeds pertaining to the property at Punjabi Bagh and the gift deed pertaining to 3/4th share in the property at Rani Jhansi Road are illegal as the mother was not in a fit mental condition to have executed any document much less the documents sought to be relied upon by defendant no.1 to perfect his title.

11. Learned counsel for the plaintiffs submits that no gift deed could have been made by Sardarni Amarjeet Kaur with regard to property at Punjabi Bagh, which was not in existence as at the time when the gift deed with regard to the property at Punjabi Bagh was executed as it was a single storied house whereas as per the gift deed the first floor and the second floor of the property has been gifted to defendant no.1. Counsel further submits that execution of gift deeds would be hit by the provisions of Section 122 of Transfer of Property Act making gift deed void and non-est in law. The execution of relinquishment deed in favour of the mother is not disputed by the plaintiffs. The documents executed by the mother in furtherance of the relinquishment deed are a subject matter of challenge in the present proceedings.

12. It is the case of the plaintiffs that defendant no.1 got the gift deeds executed taking advantage of the physical and mental incapacity of the mother and by exerting undue influence and by fraudulent and deceitful means.

13. Relying upon the medical record placed on record, it is contended by learned counsel for the plaintiffs that medical condition of the mother was such that she could not have signed the documents knowing the contents thereof as she was not in a fit state of mind to execute these documents. Counsel further submits that the mother had no control over her mental faculties and she was not in a fit state of mind. It is also the contention of learned counsel for the plaintiffs that plaintiffs were kept in darkness and they were not informed about the documents which they were made to sign and the gift deed dated 2.6.2004 in respect of first floor and second floor of the property at Punjabi Bagh is liable to be cancelled.

14. Learned counsel for the plaintiffs has prayed that defendant no.1 be restrained from selling, alienating, transferring or parting with possession of the second floor of the property at Punjabi Bagh, which although has been mortgaged by him with Chola Mandlam Finance Company. It is submitted that although the mother of the parties had only 1/4th share in the property at Rani Jhansi Road but since defendant no.1 has purchased 3/4 th share from his aunts out of the sale proceeds on selling the first floor of the property at Punjabi Bagh, which is evident from the date on which the payments were received for the sale of the first floor of Punjabi Bagh and the payments made for purchasing 3/4th share in the Rani Jhansi Road, the injunction order be also confirmed with regard to the property at Rani Jahnsi Road. It is contended that plaintiffs have satisfied the three factors for grant of an injunction being a strong prima facie case, balance of convenience and irreparable loss. Counsel pray that injunction order granted by this Court on 29.3.2011 be confirmed till the disposal of the suit having regard to the conduct of defendant no.1 and also that he is likely to sell the subject matter of the present suit to defeat the legitimate rights of the plaintiff.

15. Learned counsel for defendant no.1 submits that he is duly supported by defendant no.3 and ex parte injunction order granted in favour of the plaintiffs was based on gross suppression of facts and in fact plaintiffs have played a fraud upon the Court and have misled the Court in granting the ex parte injunction. Counsel further submits that in addition to relinquishment deed signed by all the parties in favour of the mother on 2.6.2004 plaintiff no.1 had also signed two deeds of disclaimers one in favour of defendant no.1 with respect to property at Maya Puri and the second in favour of the mother with regard to property at Punjabi Bagh. Counsel next submits that the disclaimer Deeds are extremely important documents and plaintiff no.1 has suppressed these documents from the Court on this ground alone the injunction order should be vacated. Counsel also submits that documents were signed and executed by the plaintiffs after fully understanding and satisfying themselves about the contents of the documents. It is submitted that the property at Punjabi Bagh was Willed by the father in favour of the mother and as per the Will of the father mother was fully entitled to deal with the said property in any manner she so desired. It is further submitted that the witnesses to all the documents are common and plaintiff no.1 cannot simply deny contents of the documents although plaintiff no.1 has admitted his signatures on all the documents.

16. It is contended by learned counsel for defendant no.1 that Sardarni Amarjeet Kaur was of sound disposing mind and had full control over her mental faculties especially at the time when she signed and executed the documents. Counsel further contends that medical documents placed on record by the plaintiffs only pertain to the year 2007 onwards whereas the collaboration agreement was entered into by the mother on 31.5.2004 for development of the property at Punjabi Bagh. As per the Collaboration Agreement the first floor and the entire second floor with roof rights was to vest in favour of the mother. Counsel next contends that in addition to Relinquishment Deeds signed by all the children of Sardarni Amarjeet Kaur to further reassure the mother about her exclusive ownership of the said property plaintiff no.1 executed a deed of disclaimer dated 2.6.2004 in favour of the mother where in fact it was categorically stated that he had taken his share against the Punjabi Bagh property from his mother. This disclaimer deed was also registered on 2.6.2004. Counsel also submits that factum of execution and existence of this deed of disclaimer has been fraudulently withheld by the plaintiff from the Hon ble Court at the time of hearing of ex parte ad interim injunction application on 29.3.2011. In view of the relinquishment deed and the deed of disclaimer the mother was fully authorised and competent to execute gift deeds which she did on 2.6.2004, which was duly registered, by which, she bequeathed the entire first floor of the property at Punjabi Bagh with roof rights and one-half undivided share of second floor to defendant no.1. By another gift deed dated 26.8.2004 the mother bequeathed the remaining 1/2 share in the property to defendant no.1. The second gift deed was also duly registered.

17. Learned counsel for defendant no.1 submits that on the basis of three gift deeds defendant no.1 became the undisputed owner of the entire first floor and the entire second floor with roof rights of the property at Punjabi Bagh. Subsequently by a Sale Deed dated 15.1.2007 defendant no.1 sold and transferred 4/15 undivided share in the first floor of the property to one Smt. Suman Gupta and possession thereof was handed over to her. By another Sale Deed of the same date defendant no.1 sold and transferred the remaining 11/15 undivided share in the first floor to one Sh. Ashok Gupta and possession thereof was handed over to him. Defendant no.1 has also raised loans from cholamandalam Finance Company by creation of an equitable mortgage and charge in respect of his properties including second floor of the property at Punjabi Bagh. Original title documents are in the custody of Cholamandalam Finance Company. Counsel further submits that defendant no.1 also claims exclusive ownership of the property at Rani Jhansi Road on the basis of gift deed dated 26.8.2004, executed by the mother by which she bequeathed her 1/4th share to defendant no.1 and thereafter defendant no.1 purchased the balance 3/4th share from other three co-owners by Registered Sale Deeds. Counsel next submits that stand taken by the plaintiffs that mother was not mentally stable and she had no control over her mental faculties is not borne out from the record as various documents have been placed on record to show that in the year 2004 she was in a fit state of mind and she was taking all necessary decisions independently.

18. Learned counsel for defendant no.1 has relied upon discharge summary of the mother issued by G.B. Pant Hosptial to show that the mother was admitted to hospital on 6.10.2007 and discharged on 18.10.2007. Counsel for defendant no.1 submits that subsequent documents relied upon by the plaintiffs pertaining to the health of the mother relate to subsequent years. Counsel further submits that not much can be read into the discharge summary wherein the Doctors have stated that patient was admitted with complaints of irrelevant talking and altered behavior in 2-3 years. Counsel next

submits that in the discharge summary the Doctors had also noticed that patient was conscious oriented at the time of her admission.

19. It is contended by learned counsel for defendant no.1 that medical record placed before this Court does not disclose that the mother was suffering from any mental disorder which would make her incompetent to sign and execute the gift deed and other documents. It is further contended that the mother was in a fit mental state of mind, which is evident from the fact that she has been independently using her locker bearing no.757 in Bank of Baroda. The record produced by the Bank of Bank of Baorda, pertaining to years 2005 and 2006, shows that locker had been operated by the mother on four occasions. The record also shows the admitted signatures of the mother.

In addition to this, counsel for defendant no.1 submits that there are series of events and documents placed on record which would independently show that the mother was in a fit state of mind and she was taking decisions independently. It is contended that on 20.6.2004 the mother had made an application in her own handwriting to SHO, Paschim Vihar, bringing to the notice of the SHO that her son-in-law, who was sentenced to life imprisonment by the Sessions Court (for murder of her daughter), had been released on bail and he had visited the home of the mother and taken both his children with him. Photocopy of signed application of the mother duly received by the police station has been placed on record. Further, counsel for defendant no.1, has drawn the attention of the Court to a settlement arrived at between the son-in-law and the mother on 20.6.2004, original of which has been placed on record, which bears the signature of the mother. Besides the aforesaid two documents photocopy of various FDRs in the name of two minor children Ravmeet Kaur Bedi and Supreet Singh Bedi (being children of her daughter) have been placed on record to show that the mother was mentally fit, agile and was looking after all day-to-day affairs not only concerning herself but also concerning two minor children of her deceased daughter. A copy of the statement of the mother dated 18.3.2004 handed over to the police station in connection with FDRs have also been placed on record, which also pertains to the year 2004 and bears the signature of the mother.

20. Learned counsel for defendant no.1 submits that aforesaid documents can only lead to one conclusion that in the year 2004 Sardarni Amarjeet Kaur was in a fit state of mind, she had full control over her mental faculties and the stand taken by the plaintiffs is completely dishonest, false and misleading.

21. Counsel for defendant no.1 further submits that stand of the plaintiffs that they were mislead and deceived by defendant no.1 or they reposed trust and confidence in defendant no.1 cannot be believed and it is factually incorrect in view of highly strained relationship between plaintiff no.1 and defendant no.1 and also highly strained relationship between plaintiff no.1 and his parents. Mr. Aneja submits that a Kalandra was filed on 20.6.2004, a copy of which has been placed on record duly signed by SHO, Punjabi Bagh, according to which when the officer from Punjabi Bagh visited the residence of plaintiff no.1 and defendant no.1, he found that lot of people had gathered in front of the house which had created obstruction in the pathway. He along with Head Constable entered into the house when he found that above noted Arvinder Singh and Inderjeet Singh had an altercation with each other and they were using abusive language for each other, which was creating nuisance. He then tried to make them understand but they did not understand and created

nuisance. Both of them were taken into the custody under under Sections 92, 93, and 97 of Delhi Police Act. Although nothing was recovered from their personal search subsequently they were released on police bail.

22. Learned counsel for defendant no.1 has drawn the attention of the Court to police complaint made by parents against plaintiff no.1 wherein serious allegations have been made against plaintiff no.1 that he abuses his parents and beats them over property issues. A copy of the complaint dated 18.1.1999 duly acknowledged by police station has been placed on record. A police complaint dated 8.2.1999 by the wife of defendant no.1 and defendant no.1 against the plaintiff addressed to SHO, Punjabi Bagh, has also been placed on record.

23. Learned counsel for defendant no.1 submits that in such a state of affairs, it is absolutely unbelievable that plaintiff no.1 would repose confidence in defendant no.1 or would have any trust or much less would have signed the documents without reading them or understanding the contents of the said documents. Counsel further submits that documents have not only been signed by plaintiff no.1 even the cuttings on the documents have been fully signed by defendant no.1, which would also go on to show that plaintiff no.1 was fully aware about the documents which the mother was signing. In fact in one of the cuttings the address of Punjabi Bagh house was written in hand under which plaintiff no.1 has appended his full signatures. Surely this cutting would not have escaped the attention of plaintiff no.1 having regard the highly strained relationship between the parties it cannot be said that plaintiff no.1 was misled by defendant no.1.

24. Learned counsel for defendant no.1 submits that plaintiffs were well aware of the Collaboration Agreement entered into between the mother and the builder as admittedly plaintiff no.1, defendant no.1 and mother were residing jointly on the ground floor of the suit property and the plaintiff no.1 vacated the house without any protest or demur. Counsel further submits that plaintiff no.1 removed himself from the suit property and although construction was completed in the year 2005. Defendant no.1 and his mother shifted from the suit property in the year 2006 and there was no protest by plaintiff no.1 and in case understanding was that after construction 1/4th share of the property was to fall to each party there was no reason why plaintiff no.1 did not occupy the suit property which was lying vacant initially. The fact that plaintiff no.1 has not sought cancellation of documents pertaining to ground floor and basement of property at Punjabi Bagh would go to show that plaintiffs were not only aware of the transaction between the mother and the builder but they were a party to the same and were aware of the terms of the collaboration agreement. The conduct of the plaintiff would go on to show that filing of the present suit is a mere afterthought as during the life time of the mother plaintiffs did not assert their right or take any action. Counsel next submits that assuming for the sake of arguments that the mother was not fit state of mind it was at that stage the plaintiffs should have agitated their rights. It is further submitted that the factum of execution of a disclaimer has been admitted by the plaintiff no.1 in the application, being I.A.No.14177/2011, filed by the plaintiff no.1 under Order VI Rule 17 CPC and in para 9 of the said application plaintiff no.1 has admitted signing of disclaimer deed.

25. Learned counsel for plaintiffs has clarified that he does not dispute signing the disclaimer deed with respect to property at Maya Puri but he disputes subsequent disclaimers with regard to

property at Punjabi Bagh. Counsel further submits that mere denial is no denial in the eyes of law as both the disclaimer deeds which have been placed on record would show that said documents have been witnessed by the same witnesses, which is evident from a mere glance at the documents. Counsel next submits that in the light of registered documents which have been placed on record and relying on Section 92 of the Evidence Act, plaintiffs would not have a strong prima facie case in their favour and no fetters can be imposed on the rights of defendant no.1 since balance of convenience is not in favour of the plaintiffs, plaintiffs have not approached this Court with clean hands, plaintiffs have suppressed and withheld material documents and, thus, application for interim relief filed by the plaintiffs under Order XXXIX Rules 1 and 2 CPC should be dismissed and the application for variation of interim order filed under Order XXXIX Rule 4 CPC should be allowed.

26. Learned counsel for the plaintiffs has stated in his rejoinder that there is no cogent explanation on behalf of defendant no.1 with regard to legal issue raised by him under Section 122 of Transfer of Property Act.

27. Learned counsel for the plaintiffs submits that gift deeds being void the title cannot pass to the defendant no.1, the net result of which would be that the property was to devolve equally amongst all the parties and as far as property at Rani Jhansi Road is concerned the same was purchased out of the sale proceeds of the first floor of Punjabi Bagh and the entire property at Rani Jhansi Road should be injuncted.

28. Learned counsel for defendant no.1 submits that this submission is not supported by any pleading and such a stand has not been taken by the plaintiffs either in the plaint or in the replication and the same cannot be considered by this Court at the stage of hearing of arguments and the prayer made in the suit is only with regard to 1/4 th share in the property at Rani Jhansi Road.

29. I have heard counsel for the parties and also considered their rival contentions. I have also carefully perused the plaint, applications and various documents, which have been relied upon by counsel for both the parties.

30. Arguments of counsel for the plaintiff can be summarized as under:

> (i) Medical record of the mother of the parties would show that she had no control over her mental faculties.
>
> (ii) The mother of the parties was not in a fit state of mind and, thus, various documents executed by her are a nullity.
>
> (iii) Having regard to the close family ties the plaintiff reposed full faith and confidence in defendant no.1 and in the interest of family, plaintiff signed the documents without reading or understanding the contents thereof.

(iv) The gift deed of the mother in favour of defendant no.1 is hit by the provisions of Section 122 of Transfer of Property Act as the property was not in existence when the gift deed was executed.

(v) 3/4th share purchased by defendant n.1 of the property at Rani Jhansi Road be also injuncted as the money for the purchase of 3/4th share in Rani Jhansi Road was received on sale of the first floor of the properly at Punjabi Bagh.

31. The arguments of learned counsel for defendant no.1 can be summarized as under:

(i) Injunction order dated 29.3.2011 is liable to be vacated and application dismissed on account of willful suppression of material documents including disclaimer deed signed and executed by the plaintiff, which is an extremely relevant document, which would show that plaintiff had received his share in the property at Punjabi Bagh.

(ii) The mother was in a fit state of mind particularly in the year 2004 when she executed the gift deed and other documents.

(iii) Series of documents and transactions including operation of locker, interaction with the Police, decisions with regard to her grand children and decisions with regard to financial issues of the grandchild including dealing with their fixed deposits, would show that the mother was healthy, active, agile, normal and sound health.

(iv) Medical record, sought to be relied upon by the plaintiffs, pertains to the year 2007 and not of the relevant year when documents were executed.

(v) Complaints to the Police placed on record would show that plaintiff had highly strained relations with defendant no.1.

(vi) Police complaints on record would show that plaintiff no.1 had highly strained relations with his own parents including the mother and in this view of the matter there was no question of his reposing confidence in defendant no.1.

(vii) In view of strained relations unless plaintiff no.1 had received his share he would not have vacated the property at Punjabi Bagh and assuming he was misled there is no reason for him not to shift back the property after it was re-constructed.

(viii) Plaintiffs were well aware of the terms of the collaboration, which is evident from the fact that they have not claimed any relief with respect to the share of the builder.

32. While considering an application under Order XXXIX Rules 1 and 2 CPC, the Court must take into consideration three factors i.e. (i) strong prima facie case; (ii) balance of convenience; and (iii) irreparable loss. It is also to be seen while considering the application for grant of injunction as to

whether the case of the plaintiff is frivolous or vexatious. In granting or refusing temporary injunction the Court is to exercise its discretion with reasons and sound judicial principles. Since the power to grant or refuse an injunction would essentially lie in the realm of discretion of the Court the power has to be exercised with greatest care, caution and circumspection.

33. The first issue which arises for consideration is to examine whether the mother of the parties was in a fit state of mind at the time she executed the gift deeds dated 2.6.2004 in favour of defendant no.1, signed the Collaboration Deed on 31.5.2004, by which she agreed that builder would be entitled to ground floor and basement. In support of his argument with regard to the mental state of the mother, Mr. Nigam has placed strong reliance on the medical record of the mother. Learned counsel for the plaintiff has also relied upon discharge summary of G.B. Pant Hospital. Before dealing with this contention of the counsel for the plaintiff it may be noticed that these documents pertain to the year 2007.

34. Mr. Nigam submits that at the time of admission, the hospital had taken down the case history wherein it has been stated that the patient had complaint of irrelevant talking and altered behavior for the past three years with headache off and on. I am of the view that the said observation in the discharge summary of G.B. Pant Hospital cannot be read in isolation. While, there is no doubt about the fact that the mother had complained of headaches for the past three years and the medical history has noticed symptoms of irrelevant talking but this by itself is not sufficient material to reach the conclusion that the mother had no control over her mental faculties in the year 2004. More so the plaintiff no.1, who is being supported by defendant no.2, has failed to place on record a single document to show that the mother was taking any medicine for her illness. No Doctor s prescription, name of Doctor/clinic/hospital or even the name of medicine has been placed on record. Even in the discharge summary there is no mention that the mother was under medication. The Court can also not lose track of the fact that upto the year 2004 plaintiff no.1 was residing in the same house along with his mother and brother with whom according to him he has very cordial relations. It is thus expected that as a dutiful son he would be looking after his mother and would be aware about her Doctor or medicines prescribed to her. While on the other hand the record from the Bank of Baroda would show that the mother had used the locker on four occasions; the mother had addressed a communication to SHO, Paschim Vihar, on 20.6.2004 in her own handwriting and duly signed by her informing him that her daughter who was burnt to death by her in-laws on 8.10.1997 and her in-laws were sentenced to life imprisonment by the Sessions Court; her son-in-law has since been released on bail from the High Court; and two children of the daughter, who were staying with the mother, are now being handed over to him on account of a settlement. Not only did she addressed a communication to the SHO, she even obtained an undertaking from her son-in-law.

35. Communication dated 20.6.2004 and undertaking reads as under:

> "To, SHO, Paschim Vihar, New Delhi.
>
> Sir, I Amarjit Kaur w/o Late S. Harnam Singh Sahni r/o 30/56, West Punjabi Bagh, New Delhi-26. It is to inform you that my daughter late Davinder Kaur w/o Baljit Singh Bedi r/o B1/127 Paschim Vihar, was burned (sic. Burnt) to death by his in-laws

on 8.10.97 which FIR No.713/1997 in your Police Station.

In this case they were sentenced for life ment prison from Session Court. But now Baljit Singh Bedi and Brotherin-la Arvinder Singhw as on bail from High Court. After coming on Bail Baljit Singh husband of my daughter got married to Sm. Simran Kaur.

After the death of my daughter her two children Ravneet Kaur (14 yr) Supreet Singh (13 year) were staying with me from last 6½ year. But now on 20.06.204 with some settlement Baljit Singh father of children taking his two children to his home with and undertaking attached along the application.

So, Sir, it is necessary to inform you against this matter and for you information and for some needful action from you.

Thanking you,

Dated 20.06.04

Yours faithfully

Amarjit Karu"

36. Undertaking of Sh. Baljit Singh, son-in-law is as under:

"I, Baljit Singh s/o Makhan Singh Bedi, today on 20.06.2004 is taking my two children i.e. Ravneet Kaur and Supreet Singh, who were staying with their maternal grandmother i.e. Smt. Amarjit Kaur w/o S.L. Harnam Singh Sahni R/o 30/56, West Punjabi Bagh, with the approval of the my family and the family of the maternal grandmother of my children. From today onwards, I alongwith my Simran will take care of my both the children. Moreover, my children can go to their maternal grandmother house and maternal grandmother family can also visit and also I have no objection to the same.

WITNESSES:

1. Sd/-
   C-4, Model Town-III
2. Amarjit Kaur
   30/56, Punjabi Bagh,
   New Delhi.

sd- BALJIT SINGH

B-1/127, Paschim Vihar

Sd/- KULWANT SINGH

Sd/- Simran"

37. Copies of FDRs have been placed on record, which would show that the mother

was contributing to the day-to-day affairs of the minor children and looking after their financial interest. In the absence of any medical documents and having regard to the documents (letter to SHO, undertaking, FDR, Police complaint), it cannot be said that the mother had no control over her mental faculties and documents executed by her are a nullity.

38. The second submission of learned counsel for the plaintiff no.1 is that keeping in view the close family relations he reposed faith and trust in his brother and therefore he did not read the documents. A bare reading of the Police complaint made by the parents and by the defendant no.1 and his wife to the Police and the Kalandara filed by the Police, copies of which have been placed on record, would leave little or no room for doubt that the relationship between the parties were far from cordial.

39. Although the plaintiffs have prima facie failed to establish that the mother was not in a fit state of mind when she executed the documents, however, assuming she was suffering from headaches this fact cannot be looked into in isolation for the reason that the submission of counsel for the plaintiff is that series of documents executed by the mother and by the plaintiff no.1 was neither read or understood by him as the plaintiff no.1 reposed great confidence in defendant no.2 on account of close family ties. The Police complaint dated 18.1.1999 lodged by the mother and father would show the strained relations between the plaintiff no.1 and the deceased parents. The Police Complaint dated 8.2.1999 lodged by wife of defendant no.1 and defendant no.1 would also show the extent of disharmony, which existed between both the brothers and a Kalandara was filed by the Police before the Court.

40. The Kalandara reads as under:

"IN THE COURT OF M.M. SHRI K.S. CHOPRA, TIS HAZARI, DELHI DD NO.42b DT. 18/01/04 U/S 92, 93, 97 DP ACT PS PUNJABI BAGH S/T : SI KULDEEP SINGH NO.D/535, P.S. PUNJABI BAGH S/V (I) ARVINDER SINGH S/O R/O 30/56, WEST PUNJABI BAGH, DELHI.

(II) INDERJEET SINGH S/O -DO -DO-

SUBJECT: KALANDRA U/S 92, 93, 97 DP ACT.

Hon ble Sir,

It is submitted that on receipt of DD No.24, I alongwith H.C. Suraj Bhan No.1652/00 reached to the spot 30/56, West Punjabi Bagh, New Delhi ..... Vulgar law is coming from the said house. Due which lot of persons gathered in front of said house which creates obstruction in the public path. Ib this I alongwith H.C. reached into the house when I found that the abovenoted Sardar and Inderjeet was interaction with each other and used abusive language for each other and which created nuisance. I tried to

understand then but they do not understand and continuously create nuisance. On which I went after them under Section 92, 93, 97 DP Act. Nothing was recovered from their personal search. After arrest both of them were released on Police bail and informed the date of appearance on the ..... Kindly fix.... The kalandra.

Submitted please.

Sd/-

List of documents Kalandara DD No.42B copy Arrest Memo Personal search Bail Bond c.....

List of witnesses:

2. SI Kuldeep Singh D/535"

41. In a situation where the relationship was so strained, it is unbelievable that the plaintiff would repose trust and confidence on defendant no.1; plaintiff no.1 without settling his own share, would leave the possession of the property at Punjabi Bagh; and allow construction to be carried out by a builder only in the hope that after the construction would be completed and he would get his share and shift in the family property. These submissions are unacceptable for the reason that even after the construction was completed in the year 2005, defendant no.1 and the mother shifted back to the Punjabi Bagh property in the year 2006. There is no explanation rendered as to why the plaintiffs did not stake their claim on separate floors or at least agitate their rights for their share. To say that plaintiff no.1 did not read the documents cannot be accepted as the original documents, which are placed on record, would show that even the cuttings are signed by plaintiff no.1. Disclaimer Deed dated 2.6.2006 duly registered on the same date as the gift deeds would also show that plaintiff no.1 had disclaimed all his rights, title and interests in the property at Punjabi Bagh. It may be pointed out that the original documents had initially stated that plaintiff disclaimed all his rights in all the properties, however, this has been cut and written "of the above said property". It may also be noticed that the signatures on the disclaimer deed have been admitted by the plaintiff. The defendant no.1 has also relied upon a No Objection/Declaration duly signed by the plaintiff, which reads as under:

" NO OBJECTION/DECLARATION I, Arvinder Singh s/o Late Shri Harnam Singh R/o H-32, Shivaji Park, Punjabi Bagh, New Delhi-110026, do hereby declare voluntarily and without any pressure, that I have settled all my disputes pertaining to the properties belonging to my family and I shall not claim any right, title or interest in respect of any of the properties i.e. No.30/56, Punjabi Bagh, New Delhi in future. I have already executed the Relinquishment deed and disclaimer Deed on 01.06.2004 and 02.06.2004, in favour of my brother and my mother Smt. Amarjeet Kaur who have also executed the Gift Deeds in favour of my brother Shri Inderjeet Singh on 02.06.2004 and 26.08.2004. I affirm all these documents and would not raise any dispute in future, as I have no objection against the same.

DATED: 26.08.2004

WITNESSES:

1. Sd/-
   D/91, TAGORE GARDEN,
   NEW DELHI-27.
2. Sd/-
   Ravinder Singh s/o KARTAR SINGH,
   R/o 18/75, P. BAGH,
   N.DELHI

(ARVINDER SINGH)
S/o Late Shri Harnam Singh"

42. The reading of the complaint to the Police and the Kalandra would show that there was not even a remote possibility that the brothers were on talking terms and thus the stand of the plaintiff that he reposed faith and trust in his brother and thus did not read the documents, seems most unlikely and the stand of the plaintiff is highly dishonest and improbable.

43. The next submission made by counsel for the plaintiff is that the gift deeds are a nullity and are hit by the provisions of Section 122 of Transfer of Properties Act as at the time when the gift deeds were executed the suit property at Punjabi Bagh only comprised of ground floor and since the floors above did not exist no gift deed could have been made of a property which was not in existence.

44. Section 122 of the Transfer of Property Act reads as under:

> "122. "Gift" defined.- Gift is the transfer of certain existing movable or immovable property made voluntarily and without consideration, by one person called the donor, to another, called the donee, and accepted by or on behalf of the donee.
>
> Acceptance when to be made.- Such acceptance must be made during the lifetime of the donor and while he is still capable of giving.
>
> If the donee dies the before acceptance, the gift is void."

45. It has been submitted by learned counsel for the plaintiff that two gift deeds were executed on 2.6.2004 and the third gift deed was executed on 26.8.2004. By the first gift deed the mother gifted entire first floor along with roof/terrace rights of Second Floor and above along with undivided proportionate area in the land underneath the said building. By the second gift deed the mother gifted half undivided share in/of entire second floor without roof/terrace rights along with undivided proportionate area in the land underneath the said building. By the third gift deed the mother donated half undivided share in/of Entire Second Floor without roof/terrace rights along with undivided proportionate area in the land underneath the said building.

46. Mr. Nigam and Mr. Sachdeva, have submitted that subject matter of the three gift deeds did not exist as the said portions were yet to be constructed by the builder and therefore the gift deeds are in

nullity.

47. The gift deeds pertain to the property bearing no. 30/56 Punjabi Bagh, New Delhi. At the time when the gift deed was executed the mother had already signed a collaboration agreement with the builder in May, 2004.

48. Relevant portion of Clause 7 of the Collaboration Agreement reads as under:

> "7. ..... That in lieu of the property made available by the owner to the builder for developing the said property, the owner shall be entitled to get the FIRST FLOOR AND THE SECOND FLOOR WITH ABSOLUTE TERRACE RIGHTS with proportionate share in the land. Similarly, the builder shall be entitled to get the BASEMENT AND THE GROUND FLOOR, with the proportionate undivided share in the land OF THE SAID PROPOSED BUILDING in lieu of the money consideration being paid to the owner and the amount being invested in carrying out the construction work and the services being provided by the builder, along with all common rights and services being provided in the newly constructed building."

49. It would also be relevant to reproduce the relevant portion of the gift deed dated 2.6.2004:

> "AND WHEREAS Now the said Donor is desirous to donate Entire First Floor alongwith roof/terrace rights of Second Floor and above, out of the aforesaid free hold built-up Property No.30/56, land measuring 555.55 sq. yds., in Class-C, situated at Punjabi Bagh, New Delhi, along with undivided proportionate area in the land underneath the said building to her son S. Inderjeet Singh due to natural love and affection without any monetary consideration."

50. It would be relevant to reproduce the relevant portion of the gift deed dated 2.6.2004:

> "AND WHEREAS Now the said Donor is desirous to donate half undivided share in/of Entire Second Floor without roof/terrace rights, out of the aforesaid free hold built-up Property No.30/56, land measuring 555.55 sq. yds., in Class-C, situated at Punjabi Bagh, New Delhi, along with undivided proportionate area in the land underneath the said building to her son S. Inderjeet Singh due to natural love and affection without any monetary consideration."

51. It would also be relevant to reproduce the relevant portion of the gift deed dated 26.8.2004:

> "AND WHEREAS Now the said Donor is desirous to donate half undivided share in/of Entire Second Floor without roof/terrace rights, out of the aforesaid free hold built-up property No.30/56, land measuring 555.55 sq. yds., in Class-C, situated at Punjabi Bagh, New Delhi, alongwith undivided proportionate area in the land underneath the said building to her son S. Inderjeet Singh due to natural love and affection without any monetary consideration."

52. Reading of collaboration agreement would show that the ground floor and the basement of the property was to fall to the share of the builder with proportionate undivided share in the land whereas the mother would be entitled to first floor and the second floor with absolute terrace rights with proportionate share in the land. The effect of this Clause would be that at the time when the Collaboration Agreement was entered into the rights of the parties in the building to be constructed were defined, however, along with their proportionate share in the land. No doubt the argument of learned counsel for the plaintiff and defendant no.2 seems attractive but having regard to Clause 7 of the Collaboration Agreement read with the relevant clauses of the Gift Deeds, which have been extracted above, the mother had gifted, at the time when the gift deed was executed, the area which would fall to her, no doubt the floors were yet to be constructed. But since the share of the mother in the land stood defined by the Collaboration Agreement, the gift deeds have made it abundantly clear that not only a particular floor is being gifted but even the undivided proportionate area in the land underneath the said building has also been gifted. Thus, it cannot be said that the subject of the gift sought to be gifted was not in existence at the time the gift deed was executed. Thus, the mother has gifted the proportionate share in the land and it cannot be said that what was gifted was not in existence. The aim and object of the use of the words "existing movable or immovable properties" is to ensure that there can be no gift of a vague indefinite or a non-existence thing. In the facts of the present case the land in question of the proportionate share to be gifted is very much in existence and it cannot be said that the gift deeds dated 2.6.2004 are in nullity as the floor was not in existence and all the terms of the gift deeds are to be read harmoniously. Needless to say that this is a prima facie view taken by the Court in this matter at this stage.

53. While, the submissions made by learned counsel for the plaintiffs are rejected, I find force in the submission made by counsel for defendant no.1 that due weightage has to be given to the fact that late Smt. Amarjeet Kaur has signed, executed and registered various documents, copies of which have been placed on record. Original disclaimer deed dated 2.6.2004 duly signed and registered, which has been placed on record and exhibited as Ex.D-3, clearly establishes that the plaintiff has disclaimed all his rights and interests in the property and the plaintiff has acknowledged that the mother has liberty to sell, transfer, gift and mortgage the property on which he has no claim as he has already received his share from the mother.

54. This Court also cannot lose track of the fact that father of the parties had executed a Will by which he bequeathed the entire property at Punjabi Bagh in favour of the mother. This Will was not challenged by any of the children and in fact admittedly they signed and executed relinquishment deeds in favour of the mother. The effect of relinquishment deeds and the Will would be that the mother became the absolute owner of the property at Punjabi Bagh and was free to deal with the same in any manner she so desired. Having arrived at a prima facie view that the mother was in a fit state of mind and the fact that the gift deeds are not hit by the provisions of Section 122 of Transfer of Property Act, the mother was well within her right to execute the gift deeds.

55. Having regard to the various documents, which have been placed on record, I am satisfied that at the time when the mother had signed and executed the documents, she was in a fit state of mind, although she may be suffering from headaches and irrelevant talkings, but her condition was not such that she could not understand what she was signing, which is evident from the letter addressed

by her to SHO, Prashant Vihar; the fact that she was looking after the financial affairs of her grand children; operation of bank locker at Bank of Baroda; taking of undertaking from her son-in-law, who was released on bail; and also in the absence of any material document on record to show that her health was bad to the extent that she could not understand what she was signing. I also find that the stand taken by counsel for the plaintiff that plaintiff no.1 had reposed faith and trust in his brother to be the dishonest plea as the Police complaints and Kalandra on record would show the extent of animosity and the strained relationship between the brothers. In such a situation this Court cannot be made to believe that plaintiff blindly signed the documents without understanding the contents and accompanied his brother and mother to the Sub-Registrar Properties, where the documents were executed, the fact that he vacated the suit property at Punjabi Bagh; allowed construction to be carried out without any obstruction or hindrance; then not to take possession at least of his 1/4th share, which accordingly to him he was promised and not agitate his rights during life time of the mother. The submissions made in this regard are hard to believe. Simple denial of the disclaimer deed and no objection cannot be accepted. The fact that plaintiff no.1 admits signing and executing one disclaimer deed and denying the second when the witnesses on both the documents are the same surely point out to a direction to show that plaintiff was fully aware about the intent of his mother and he had received his share.

56. Having regard to the aforesaid facts, it cannot be said that the case of the plaintiffs is covered by three well-established principles i.e. (i) strong prima facie case; (ii) balance of convenience; and (iii) irreparable loss.

57. Consequently, the application, being I.A.No.5039/2011, filed by the plaintiff under Order XXXIX Rules 1 and 2 CPC is dismissed and the interim order dated 29.3.2011 is vacated. I.A.No.7674/2011 filed under Order XXXIX Rules 4 CPC is allowed. Needless to say that any observations made by this court in this order are prima facie in nature and the same would not have any bearing at the time of final hearing of the matter.

CS(OS) 780/2011, I.A.NOS.7677/2011, 10897/2011 & 14177/2011.

58. List the matter before Court on 19.3.2012, when parties shall bring suggested issues to Court.

G.S.SISTANI,J NOVEMBER 30, 2011 msr